

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

COMPLAINANTS' STATUS REPORT

Complainant herein submits this Status Report to make the Commission aware of changes in status regarding the above captioned matter.

On August 27, 2017, complainant wrote to counsel for respondents for purposes of conferring on the issue of complainant's intent to file a motion on August 28, 2017 seeking to correct the record with respect to the Commission's Notice Denying Extension of Time (Document 103 on the Docket), which incorrectly stated that complainant filed its second motion for an extension of time on August 16, 2017. Complainant further advised that said motion would also request that the Commission disregard and/or strike respondents' Opposition to Complainant's Motion for an Indefinite Stay to the extent that said filing was untimely; that in the process of filing same, the respondents have improperly requested the Office of the Secretary to grant relief by email; and that said opposition improperly refers to matters outside of the scope of complainant's requested relief. A copy of said email is annexed hereto as Appendix "1".

On August 28, 2017, complainant filed the Motion to Correct the Record and for Other Relief and Appendix (Previously filed as Documents 108 and 109 on the Docket), and which noted, on page "6" of the motion that complainant had contacted counsel on August 27, 2017 for purposes of conferring regarding respondents' consent or lack thereof to complainant's requested relief.

On August 30, 2017, complainant's counsel received an email from the Office of the Secretary which explained that the Secretary was rejecting said filing as "...it is not in compliance with Commission rules because counsel did not confer with opposing party as required by 46 C.F.R. 502.71." A copy of said email is annexed hereto as Appendix "2".

The basis for the rejection is still unclear inasmuch as in the past, the Office of the Secretary has accepted the filing of motions by respondents and their counsel on short notice (to be specific, respondents' counsel Eric Jeffrey, Esq. in the matter of *Igor Ovchinnikov, et al, v. Michael Hitrinov a/k/a Michael Khitrinov, et al.* , FMC Docket 15-11), wherein Mr. Jeffrey failed to provide to provide complainants with time to note their consent or lack thereof to the filing of respondents' Motion to Seal (Document 119 on Docket No.: 15-11). A copy of Jeffrey's email 'attempt' to confer, as well as the cover email accompanying his filing is annexed hereto as Appendix "3" (See, also, Appendix "A" to Complainants' Response to Respondents' Motion to Seal, Document 121 on Docket No.: 15-11).

Complainant respectfully notes that to the extent that the Commission's Rules of Practice and Procedure do not explicitly define a time period certain within which parties must confer prior to the filing of non-dispositive motions, that the door has been left open to what might appear to be a lack of an even handed treatment of parties and their counsel with respect to compliance with the Commission's requirement to confer. It is further respectfully submitted that this issue may addressed during any forthcoming Notices of Proposed Rulemaking by the Commission.

On August 30, 2017 complainant requested via email, *for the second time*, that both of respondents' counsel, to wit: Mr. Doyle and Mr. Werner advise as to respondents' consent, or lack thereof to complainant's Motion to Correct the Record and for Other, relief described above. A copy of said email is annexed hereto as Appendix "4". As of the time of this writing, and despite having corresponded with the undersigned and the Office of the Secretary on various issues, complainant has yet to receive a substantive response from respondents' counsel.

As such, complainant simply wishes to advise the Commission that it will be re-filing its Motion to Correct the Record and for Other Relief, which will be re-dated from August 28, 20117 to August 31, 2017.

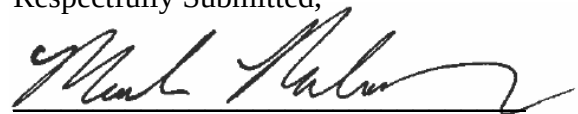
CONCLUSION

Consequently the foregoing, along with the attachments annexed hereto are respectfully submitted as same reflect a 'change in status' of this case with regard to both respondent, Hitrinov and their counsel, as well as to the pending Motion to Correct the Record and for Other Relief so as to inform the Commission of said change in status as same may reflect upon or be determinative of the pending motion now before the Commission herein.

In closing, and as always, complainants thank the Commission for its many continuing courtesies and considerations in this case.

Dated: August 31, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
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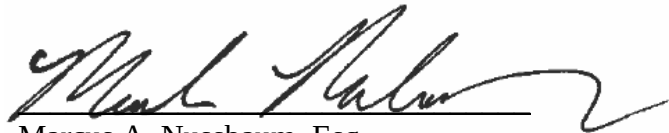
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT** and **APPENDIX** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

Gerard S. Doyle, Jr.
The Law Office of Doyle & Doyle
Attorneys for Respondents
636 Morris Turnpike
Short Hills, NJ 07078

by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

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Dated: Brooklyn, New York
August 31, 2017